

Carnelian Maintenance Corporation

Enforcement Action Policy

Enforcement Actions Policy

Procedures for Addressing Policy Violations

Purpose

This policy outlines the steps and consequences for enforcing community rules and regulations, specifically regarding repeat violations. The intent is to encourage compliance and maintain a safe, orderly, and pleasant environment for all homeowners and residents.

Due Process and Enforcement Procedures

Prior to the imposition of any monetary penalty or disciplinary action, the Association shall provide the homeowner with written notice of the alleged violation and an opportunity for a hearing before the Board of Directors, or its designated representative, in accordance with applicable California Civil Code requirements.

The notice shall describe the nature of the violation, the proposed disciplinary action, and the date, time, and location of the hearing. Homeowners shall have the opportunity to present information, evidence, or explanations regarding the alleged violation before a decision is made.

Following the hearing, the Board shall determine whether a violation has occurred and whether disciplinary action, including fines, is appropriate. The homeowner shall be notified of the Board's decision in writing.

Immediate Towing for Safety-Related Violations

Notwithstanding the progressive enforcement procedures outlined in this policy, a vehicle may be subject to immediate towing without prior notice when it creates an immediate threat to health, safety, emergency access, or the Association's ability to comply with applicable laws and regulations. Examples include, but are not limited to:

- Parking in a fire lane or designated emergency access route;

- Blocking access to fire hydrants, emergency gates, or emergency response equipment;
- Obstructing access required for emergency services, utility repairs, health or safety inspections, or other legally required operations;
- Creating a hazardous condition that poses an immediate risk to persons or property.

Any such towing shall be conducted in accordance with applicable law and the Association's governing documents.

Enforcement Actions

The following progressive enforcement actions will be taken in the event of violations:

1st Violation – Warning Notice

Upon the first violation of community rules, the homeowner will receive a written warning notice. This notice will describe the violation and provide an opportunity for the homeowner to take corrective action.

Notwithstanding the foregoing, upon notification or observation of a violation that may result in an adverse impact on the health and/or safety of the residents, common area, and/or another homeowner's property, a hearing notice may be sent to the violating homeowner (and violating resident, if applicable) immediately and without first having sent a warning notice.

2nd Violation – HOA Fine Issued

If a second violation of the same rule occurs, the Homeowners Association (HOA) may issue a fine to the homeowner as specified in the HOA's schedule of fines. Prior to the issuance of any fine, the homeowner shall be provided notice and an opportunity for a hearing as described in the Due Process and Enforcement Procedures section of this policy.

The notice of fine will include details about the violation and the assessed penalty.

To the extent the violation is one that may result in an adverse impact on the health and/or safety of the residents, common area, and/or another homeowner's property, and in addition to the hearing procedures set forth above, the Board will prepare a written finding or resolution specifying the adverse health or safety impact, and adopt the finding/resolution during an open Board meeting prior to the hearing. If the Board previously adopted such a finding/resolution covering the violation at issue, no subsequent finding/resolution need be adopted.

3rd Violation (Parking Only) – Vehicle Subject to Towing at Owner's Expense

Upon a third violation of the same parking rule, the vehicle involved may be subject to towing at the owner's expense. Prior warnings and fines will be documented, and towing will be carried out in accordance with applicable laws, the Association's governing documents, and HOA procedures.

Owner Opportunity to Cure

No Fine will be levied against a violating homeowner if the violation is cured prior to the hearing. If the violation cannot be cured prior to the hearing, the fine will not be imposed if the violating homeowner provides financial commitment to cure the violation.

Notwithstanding the foregoing, there are certain violations which are “uncurable”—a violation is “uncurable” if it consists of a non-continuing, completed act for which there is no reasonable remedial action that would undo the misconduct or bring the homeowner into compliance before the hearing (e.g., discharging fireworks in the common area; hosting an unauthorized party). The cure exceptions above do not apply to uncurable violations. For uncurable violations, the Board may impose a fine notwithstanding the fact that the conduct has ceased.

Expedite Resolution

At any time during the enforcement, the Board may determine that it is in the Association’s best interest to expedite the resolution of the matter through, among other things, immediately setting the matter for a hearing, transferring the matter to the Association’s legal counsel, and/or the institution of legal action against the homeowner.

Policy Review and Amendments

This policy will be reviewed annually and may be updated as necessary by the HOA Board to ensure effectiveness and compliance with applicable laws.